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TITLE: Data Retention and Destruction Policy	VERSION NO: 1
AUTHOR: Erin Lynch, DPO	EFFECTIVE FROM: 25 th June 2021
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TITLE: **Data Retention and Destruction Policy**

AREA: **CRC Organisation**

REFERENCE NO: **PPORG 24**

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AUTHOR(S): **Erin Lynch, Data Protection Officer**

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1.0 Policy Statement

A wide variety of records are held across the Central Remedial Clinic (CRC) including health and social care records, financial records, human resources records, corporate records and general administrative records. These may be in both paper and electronic format.

The CRC is committed to effective records management retention and disposal to ensure that it:

- Complies with the principles relating to processing of personal data set out in the GDPR and Data Protection Act 2018 such as purpose limitation, data minimisation and storage limitation etc.;
- Optimises the use of space;
- Minimises the cost and associated risk of record retention;
- Securely destroys records within the agreed timeframes as set out in the Data Retention Schedule.

2.0 Purpose

The purpose of this policy is to:

- Define the minimum retention period for records across CRC services and provide guidance to staff on the assessment of value of records to calculate appropriate retention periods where they may not exist;
- Ensure the CRC complies with the data retention obligations under the GDPR and Data Protection Act 2018, other relevant legislation and/or industry norms and business specific needs;
- Ensure appropriate controls are in place to prevent unauthorised destruction of records. The destruction of records is an irreversible act and can have serious consequences.

3.0 Scope

This policy applies to all CRC locations, management, staff and volunteers. It relates to all personal data as defined under data protection legislation and all specified non-personal data records to which data protection legislation does not apply.

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4.0 Legislation/ Other CRC Documents

- EU GDPR 2016/679 General Data Protection Regulations
- Data Protection Act 2018
 - S.I. No. 18 of 2021 (Health Research) Regulations
- Freedom of Information Act 2014
- Health Act 2004
- Employment Law
- Companies Act 2014
- Health, Safety and Welfare at Work Act 2005
- HSE Health Service Policy, Record Retention Periods 2013
- HSE Standards and Recommended Practices for healthcare records management V3 2011
- CRC Data Protection Policy
- CRC Data Breach Management Policy & Procedure
- CRC Data Subject Access Request Policy & Procedure
- CRC Clean Desk Policy
- CRC CCTV Policy
- CRC IT Acceptable Use Policy
- CRC Mobile Device Policy
- CRC Social Media Policy
- CRC Health and Social Care Records Management Policy
- CRC COVID-19 Guidelines
- CRC Archiving Guidelines

5.0 Glossary of Terms and Definitions

DPO – Data Protection Officer; CRC is required by law (GDPR and Irish Data Protection Act) to have a DPO whose role is to support the CRC’s compliance with data protection laws. The DPO for CRC is a member of the Quality, Risk and Safety team.

Personal Data – any information relating to an identified or identifiable natural person “data subject”; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person Regulation.

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Processing – any operation or set of operations which is performed on personal data or on sets of personal data, whether by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

DPC – Data Protection Commission; the Irish supervisory authority for the General Data Protection Regulation (GDPR) responsible for monitoring the application of data protection legislation in order to protect the fundamental rights and freedoms of data subjects in relation to processing.

Personal Data Breach – A breach of security leading to the accidental or unlawful destruction, loss (may be temporary or permanent), alteration, unauthorised disclosure of, or access to, personal data transmitted, stored or otherwise processed.

Contact Tracing – Contact tracing identifies people who were in close contact with someone who has coronavirus. Examples include, work related contacts, family members, friends.

Workplace & Departmental Contact Log – Record of daily contacts and the type of contact with work colleagues to facilitate contact tracing.

6.0 Roles and Responsibilities

The **Chief Executive Officer** (CEO) has overall responsibility for ensuring all CRC records are managed responsibly within the organisation.

Managers have overall responsibility to ensure their department maintains relevant contact logs to facilitate contact tracing, this includes the recording of all visitor contact details. These records should be securely stored for prescribed amount of time and securely destroyed as per this document.

The **Data Protection Officer** (DPO) is responsible for providing guidance to management and staff on the retention periods for personal data. The DPO is also responsible for coordinating audits to ensure compliance with this policy.

Heads of Department/ Senior Managers/ Line Managers are responsible for:

- The classification of records within their functional areas;
- Application of the appropriate retention period for each record type as outlined in Appendix 1;

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- Assessing the value of each type of record and document the appropriate retention period where a retention period is not yet specified;
- Reviewing retention periods on an annual basis;
- Retain records for only as long as the documented retention periods;
- Destruction of records no longer needing to be retained in accordance with this policy;
- Ensuring all staff including agency and volunteers within their area of responsibility are familiar with and comply with this policy;
- Ensuring that when new information management systems are being designed (both paper and electronic), data retention procedures are considered;
- Maintain a Data Destruction log.

IT department is responsible for the technological support for the electronic record's management systems, including maintaining the integrity, availability and authenticity of electronic records.

All staff are responsible for:

- Complying with this policy
- Maintaining accurate and quality records management

7.0 Procedure

High quality information underpins the delivery of high quality, evidence-based health and social care and many other key service deliverables. Information has most value when it is accurate, up to date and accessible when needed. Effective records management ensures that all records and information is appropriately managed in line with legal requirements and is available whenever and wherever there is justified need for that information, in whatever form of media it is required. Information may be required:

- To support individual care and continuity of care and support;
- To support day to day business which underpins the delivery of care and support;
- To support evidence based clinical practice;
- To support sound administration and managerial decision making, as part of the knowledge base for CRC services;
- To meet legal requirements, including requests from individuals under access provisions of the Data Protection Act 2018/GDPR or the Freedom of Information Act;
- To assist clinical and other types of audits;

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- To support improvements in clinical effectiveness through research and also to support archival functions by taking account of the historical importance of material and the needs of future research; or
- Support a person's choice and control over treatment and services designed around individuals.

However desirable it may be to keep every single record forever in its original format in a "just in case" scenario, the reality is that there is limited storage capacity available and perpetual retention of all personal records is in breach of Data Protection laws. The longer the time period for retention of data, the greater the potential risk and burden to the organisation in terms of cost of storage, security of the data, ensuring it is accurate and up to date etc.

The CRC must comply with the principle as laid out in Data Protection law, that personal data must not be kept in a form which permits identification of data subjects for longer than necessary for the purposes for which it was obtained. This requirement places a responsibility on the CRC to be clear about the length of time personal data will be kept and the reasons why the information is being retained.

7.1 Data Retention

The retention period as set out in appendix 1, will start from the time the data was last active or in use e.g. from the date of discharge.

There may be instances where certain data held by CRC is relevant to current litigation, potential litigation (that is, a dispute that could result in litigation), government investigation, audit or another event which must be preserved and not deleted, disposed of or changed. This exception is referred to as a **"Legal Hold"** and takes priority over any previous or subsequent retention schedules for those records. If it is unclear if this exception applies, or if a staff member suspects that it may possibly apply, they should contact their Line Manager in the first instance. If destruction of the data has commenced, it must be stopped immediately as soon as the legal hold becomes known.

Information may be retained if it is likely to be needed in the future and if the consequences of not having it would be substantial; it is impossible to try to accommodate every conceivable need and therefore a balanced and common-sense approach must be taken weighing up the likelihood and impact both for and against retaining the information.

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7.2 Data Destruction

Once the retention period has lapsed and provided there is no exceptional reason for the data to be retained for longer e.g. legal hold, the information must be disposed of appropriately and securely.

Records can be destroyed in the following ways:

- Non-sensitive/non-confidential/non-business information – can be placed in normal CRC recycling bin
- Confidential information – can be placed in shredding console or shredded by nominated and approved waste disposal firm. **N.B. client files must never be disposed of in a shredding console**
- Electronic equipment containing information – destroy using killdisc and for individual folders, they will be permanently deleted from the system. Destruction of electronic records should render them non-recoverable even using forensic data recovery techniques

Destruction of records must be authorised by the relevant line manager and recorded in Department Data Destruction log. Where records are to be destroyed by a professional contractor, a certificate of destruction must be issued.

7.3 Data Destruction logs

A record in the form of a register/log, issued by CRC's DPO is to be maintained by each department of all records destroyed, providing verifiable authorised proof of destruction. The log should be kept in perpetuity and should provide details of all records destroyed.

8.0 Revision and Audit

This document will be reviewed on a periodic basis of 3 years or more frequently if required.

9.0 References and Bibliography

Not Applicable

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10.0 Appendices

Appendix 1 CRC Data Retention Schedule

The Data Retention Schedule (table) below outlines the retention periods for common specified record categories. Where a HOD determines their department requires a new record category where a pre-existing record category cannot be used, the HOD must create the new category by assessing the value of that record type and determining the appropriate retention period. The management of the types and categories of data is managed through SharePoint.

This table is not an exhaustive list and it is envisaged, that new categories will be added as the policy is implemented.

Appendix 2 – Shredding FAQs

What are shredding Consoles? Shredding consoles provide a safe and secure way of discarding confidential documentation and are situated in all CRC locations.

What does a shredding console look like? The image below shows a standard shredding console:



What documents are confidential? Any document which contains data or information which is not currently in the public domain.

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What if I am unsure whether a document is confidential? If in doubt put it in the shredding console. Original client files should not be disposed of using this method. A client's paper record must be scanned and stored off site. This must only be done with the procedure as laid down by the medical office manager.

How often should documents be placed in the shredding consoles? Documents which have reached their end of life must be placed in the shredding consoles as soon as possible but no later than close of business each day. Documents identified as end of life must not be in any location other than a shredding console overnight (NO EXCEPTIONS).

What items can be placed in a shredding console? A notice is affixed to each shredding console detailing what can and cannot be placed in the console.

What happens if the shredding console is full? Contact the Medical Office Manager immediately and place your documents in the nearest available console (do not leave documents adjacent to console on floor /in box etc.).

I placed a document in the shredding console which I now require. How can I retrieve it? You cannot retrieve any documents from the shredding console. Retrieving documents or paper items from the console could breach the confidentiality of other items within the console.

How do I know that my documents will be securely destroyed? A third-party company collects and destroys the contents of the consoles on-site on a regular basis and a destruction certificate is supplied. The third party complies with the following ISO standards (15489, 9001, 15713, 14001, 27001).

I am going to have a clear-out of my department what should I do: The Medical Office Manager can provide sealable security bags for large volume destruction. At least 4 weeks' notice must be given to the medical office manager. These are provided at a cost to each department, the number of bags distributed much equal the number of bags returned in each day. Bags containing documents must be returned sealed. Unused bags must be returned unsealed. Whilst filling the bags they must not be left unsupervised at any time and must be kept in a secure locked room. Bags must be returned full or empty at the end of each day.

Can I still use my own shredder or one that I have access to: No, this is the only approved method and process for document destruction. All electrical

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shredders will be collected and disposed of shortly after the shredding consoles have been put in place.

Can I just tear the document into small pieces and place in the general or recyclable paper bin? No, this is the only approved method and process for document destruction.

Will the policy be monitored? Yes, the policy will be closely monitored by line management. Failure to comply may result in the disciplinary procedure being invoked.